

Shahfaisar @ Faisal v. State of U.P.

Allahabad High Court · Division Bench · 18 December 2019 · Writ-C No. 41981 of 2019 · **Writ disposed; appear before EE for final order; coercive action stayed; s.127 liberty.**

HEADNOTE

The Allahabad High Court declined to quash a 9 July 2019 recovery citation on merits. On the department's undertaking to supply the provisional assessment within a week, it directed the consumer to appear before the Executive Engineer on 6 January 2020 with objections and evidence, and directed a speaking final order within four weeks thereafter. Coercive action was stayed for seven weeks or until disposal of the objection, whichever was earlier. Liberty was reserved to appeal under Section 127 of the Electricity Act, 2003 against that final order; default in appearance would revive the demand automatically.

FACTUAL SUMMARY

Shahfaisar alias Faisal challenged a recovery citation dated 9 July 2019. He told the Allahabad High Court that the concerned authority had never supplied a copy of the provisional assessment and was taking coercive recovery steps without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department undertook to furnish the provisional assessment within a week. The Court heard both sides and perused the record.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ against recovery citation — speaking final order then Section 127 appeal

HOLDING

A writ seeking to quash a recovery citation, where the consumer alleged that the provisional assessment had not been supplied and coercive steps were being taken without a hearing under the U.P. Electricity Supply Code, 2005, was disposed of without examining the demand on merits. On the department's undertaking to supply the provisional assessment within a week, the consumer was directed to appear before the Executive Engineer with objections and evidence; the Engineer was to pass a speaking and reasoned final order within four weeks of that appearance. Coercive action was stayed for seven weeks or until disposal of the objection, whichever was earlier. If aggrieved by the final order, the consumer was left to the statutory appeal under Section 127 of the Electricity Act, 2003. Default in appearance would revive the demand automatically. ¶ 1-3

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery citation, the Court left any challenge to that order to the Section 127 appeal and did not adjudicate the demand in writ. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 9 JULY 2019 RECOVERY CITATION AND OF THE UNDERLYING PROVISIONAL ASSESSMENT

The Court neither quashed nor affirmed the demand; it channelled the consumer into a speaking final order and a Section 127 appeal. ¶ 1-3

NOT DECIDED — WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HEARING AND SERVICE REQUIREMENTS WERE BREACHED

Alleged by the petitioner; not determined. ¶ 1-3

